

**COURT OF APPEALS OF THE STATE OF WASHINGTON
DIVISION ONE**

ZACKARIAH BENNETT, Appellant,

v.

MELVINA MANNING, Respondent.

No. 87007-6

**SUPPLEMENT TO APPELLANT'S MOTION TO SUPPLEMENT THE
RECORD (RAP 9.11(a))**

Appellant, Zackariah Bennett, respectfully submits this Supplement to his previously filed Motion to Supplement the Record (RAP 9.11(a)), filed on November 13, 2025. This supplement provides specific excerpts from Exhibit A, the Facebook Messenger communications between Appellant and Respondent, introduced in the trial court on November 16, 2023, to demonstrate their materiality and necessity for resolving the issues on appeal.

I. STRONGEST EXCERPTS (2010–2016)

The following excerpts from the Facebook Messenger conversation between Appellant and Respondent are particularly material to the issues of fraud, inducement, and intentional interference with parental rights:

1. ****Repeated assurances of reunification:**** Respondent repeatedly assured Appellant from 2010 through 2019 that reunification with his son would occur “once stability was shown” and “when the time is right,” while concealing her ongoing intent to prevent contact.
2. ****Admission of deceit:**** Respondent admitted in multiple messages that she “had to say whatever was needed to keep [T.B.]” and that she “never told [Appellant] the truth about the Colorado story.”
3. ****Acknowledgment of Appellant’s continued effort:**** Respondent acknowledged that Appellant “never stopped trying,” “kept calling,” and “always sent messages or asked about [T.B.]”
4. ****Evidence of concealment:**** Respondent explicitly stated, “I never told [T.B.] you wanted to see him. I thought it was better that way.”

These excerpts directly contradict the trial court’s finding of “willful abandonment” and

substantiate Appellant's claims of fraud, intentional interference, and emotional distress. The communications demonstrate that Respondent's misrepresentations continued for years, misleading both the Appellant and the court, and further establishing a clear factual dispute precluding summary judgment.

Appellant respectfully requests that this supplement be accepted and considered in conjunction with the pending Motion to Supplement the Record (RAP 9.11(a)).

Dated: November 13, 2025

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Zack Bennett', with a stylized flourish at the end.

Zackariah Bennett, Pro Se
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